



LEGAL PRACTITIONERS AND BAR COUNCILS (AMENDMENT) ORDINANCE, 2007

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LEGAL PRACTITIONERS AND BAR COUNCILS (AMENDMENT) ORDINANCE, 2007

ORDINANCE LXIX OF 2007

AN ORDINANCE

further to amend the Legal Practitioners and Bar Council Act, 1973

WHEREAS it is expedient further to amend the Legal Practitioners and Bar Councils Act, 1973, (XXXV of 1973) for the purposes and in the manner hereinafter appearing;

AND WHEREAS the National Assembly stands dissolved and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan read with the Proclamation of Emergency of the 3rd day of November 2007 and the Provisional Constitution Order No. 1 of 2007, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement-(1) This Ordinance may be called the Legal Practitioners and Bar Councils (Amendment) Ordinance, 2007.

(2) It shall come into force at once.

2. Amendment of section 9, Act XXXV of 1973.-In the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973), hereinafter referred to as the said Act, in section 9, in subsection (1), in clause (a), the words 'and to remove advocates from such roll' shall be omitted.

3. Amendment of section 10, Act XXXV of 1973.-In the said Act, in section 10, in subsection (1), clause (aa), shall be omitted.

4. Amendment of section 13, Act XXXV of 1973.-In the said Act, in section 13,

(i) in subsection (1), clause (c) shall be omitted;

(ii) for subsection (2), the following new subsection shall be substituted, namely,

“(2) Any person aggrieved by any decision, order or resolution of Pakistan Bar Council, a Provincial Bar Council, the Supreme Court Bar Association, or any other Bar Association may within thirty days of such decision, order or resolution prefer an appeal to the Chairman of the Pakistan Bar Council, whose decision in such matter shall be final.”

5. Amendment of section 15, Act XXXV of 1973 -In the said Act, la section 15 in subsection (1), clause (a) shall be omitted.

6. Substitution of section 41, Act XXXV of 1973 -In the said Act for section 41, the following shall be substituted, namely:

“41. Punishment of advocates for misconduct.- (1) Where on receipt of a complaint or otherwise, the Supreme Court or the High Court, as the case may be, has reasons to believe that any advocate has been guilty of professional or other misconduct, it may for reasons to be recorded and after giving an opportunity of hearing pass any of the following orders:

- (a) dismiss the complaint;
- (b) reprimand the advocate;
- (c) suspend the advocate for practice for such period as it may deem fit;
- (d) remove the name of the advocate from the roll of advocates:

Provided that it shall not be necessary to give any notice for passing any ad-interim order of suspension during the pendency of proceedings.

(2) The Supreme Court or High Court may constitute a disciplinary committee comprising of at least two judges of the said Court for exercising the powers under this section and may if it so desires co-opt one advocate of the Supreme Court to be a member of the Committee.

(3) Notwithstanding anything contained in sections 55 and 56, the Supreme Court or the High Court, as the case may be, may make rules for giving effect to sections 41 and 42 and the procedure to be followed in this regard”.

7. Substitution of section 42 Act XXXV of 1973.-In the said Act, for section 42, the following shall be substituted, namely:

“42. Appeal.- (1) An appeal shall lie against the final order passed by the High Court or its disciplinary committee under section 41 to the Supreme Court within thirty days of passing of such order.

(2) An intra-court appeal shall lie to the Supreme Court against the final order of the disciplinary committee constituted under section 41 by the Supreme Court, which shall be heard by three or more judges of the said Court and shall be decided within thirty days of the passing of the impugned order.”

8. Omission of certain sections, Act XXXV of 1973.-In the said Act, sections 43 to 54, shall be omitted.

9. Amendment of section 55, Act XXXV of 1973.- In the said Act, in section 55, clause(s) shall be omitted.

10. Amendment of section 56, Act XXXV of 1973.-In the said Act, in section 56, clause (1) shall be omitted.

11. Amendment of section 59B, Act XXXV of 1973.-In the said Act, in section 59B, in subsection (1),

(i) for the word “removed” the words “expelled or removed” shall be substituted; and

(ii) in the existing proviso, for the full stop at the end a colon shall be substituted and thereafter the following proviso shall be added, namely:--

“Provided further that no member of a Bar Association shall be expelled or removed from membership by any Bar Association without giving him opportunity of being heard and except with the prior approval of the Chairman of the Pakistan Bar Council.”

12. Consequential amendment in the Rules.-As a consequence of the amendments made through this Ordinance, namely, the Legal Practitioners and Bar Councils (Amendment) Ordinance, 2007, Rules 117 to 127 of the Pakistan Legal Practitioners and Bar Councils Rules 1976, rules 6.1 to 6.10 of the Punjab Legal Practitioners and Bar Councils Rules 1974, rules 54 to 63 of the Sindh Legal Practitioners and Bar Councils Rules 1975, rules 54 to 63 of the Balochistan Legal Practitioners and Bar Councils Rules 1975 and rules 6.1 to 6.2 of the N.-W.F.P. Legal Practitioners and Bar Council Rules, 1974, shall stand omitted.
